

**IN THE HIGH COURT OF TANZANIA
(DAR ES SALAAM DISTRICT REGISTRY)**

AT DAR ES SALAAM

PC. CIVIL APPEAL NO. 69 OF 2018

*(Arising from Matrimonial Appeal No. 8 of 2018 Morogoro District Court;
Origin Matrimonial Cause No. 59 of 2017 Morogoro Primary Court)*

ABDALLAH SALUM MUWINGE.....APPELLANT

VERSUS

HALIMA ISMAIL RESPONDENT

Date of last order: 27/10/2020

Date of Judgement: 31/12/2020

JUDGMENT

S.M. KULITA, J.

This is the second appeal by **ABDALLAH SALIM MUWINGE** who is dissatisfied with the decision of Morogoro District Court in Civil Appeal no. 08 of 2018, originating from the Matrimonial Cause no. 57 of 2018, Morogoro Urban Primary Court.

A brief background of this matter is that, the parties herein contracted an Islamic marriage in 21/5/2010, the respondent, **HALIMA ISMAIL** being the second wife. During the subsistence of their marriage they were blessed with one issue. The misunderstanding between them started in 2001, when the respondent insisted that she wanted the appellant to name her and the child as the heirs of the house they build at Mkundi. In 2016 the relationship between the parties worsen when the respondent and his step child took the appellant's child to Dar es Salaam without his consent, the matter was reported to the police station but they could not reconcile, he therefore decided to give the respondent *talak*. The appellant took the matter to Morogoro Urban Primary Court, seeking for divorce, division of matrimonial assets and maintenance of the child. Consequently, the trial court granted divorce to the appellant together with the division of matrimonial assets and maintenance of the child. Dissatisfied with the decision of the trial court, the appellant herein appealed to the District court of Morogoro. Dissatisfied with the decision of the district appellant lodged this appeal with twos ground as here under;

1. That the learned trial magistrate erred in law and in fact by awarding the respondent 70% of the matrimonial property without considering the relevant factors provided by the law and the extent of contribution of each party.

2. That the learned trial magistrate erred in law and in fact by awarding maintenance of the sole issue of their marriage to the tune of Tshs. 50,000/= per month without considering the other factors provided by the law and the appellant's income

During submission in respect of this appeal which was heard by way of written submission the appellant submitted in respect of ground one of appeal that the court is bound with the provisions of section 114(1) of the Law of Marriage Act when dividing the matrimonial assets between the parties. He said that in this case the District Court did not consider the fact the respondent did not contribute anything in the acquisition of the said house. He submitted that the extent of respondent's contribution was by way of domestic work only. The appellant is of the view that the division of the said house at the rate of 70% to the respondent was not fair. To support his argument the appellant cited the case of **Bibie Maulid vs. Mohamed Ibrahim (1989) TLR 162** and **Mariam Tumbo vs. Harold Tumbo (1983) TLR 293**, which ruled out that the division of matrimonial property should consider the extent of contribution.

Arguing on ground two of appeal, the appellant submitted that the magistrate erred in ordering the appellant to pay the sum of 50,000/= monthly without considering the appellant's income

and means of life thus such amount is greater when considering the fact that the appellant has no means of income. To support his argument, he cited the case of **Jerome Chiluba vs. Amina Adam (1989) TLR 117.**

The appellant concluded his submission by praying for the court to allow the appeal by quashing and setting aside the decision of the District Court.

Replying to the appellant's submission, the respondent, Ms. Halima Ismail did not have much to say. She submitted in respect of ground one of appeal that the District Court considered the extent of contribution.

Replying on ground two of appeal, the respondent submitted that the appellant can afford the sum of Tsh. 50,000/= to maintain their child on the fact that he has a means of income thus the District Court was right.

Ms. Halima Ismail concluded her submission by praying the court to dismiss this appeal.

I have carefully considered the submission by both parties, however before dwelling into the merits of this appeal I find convenient and prudent to point out the errors noticed in the course of going through the records of the trial court for the purpose to putting the records clear. The records of the trial court indicate that when the matter was fixed for hearing on

23/10/2017. The following transpired on the first day of hearing, I wish to reproduce the same as hereunder specifically on page 2 of the typed proceedings;

Tarehe 23.10.2017

Mbele ya D.M.Somi-Hakimu.

Washauri:- Siogopi

Pendaleo

Mdai:- Halima Ismail-Yupo

Mdaiwa:- Abdallah Salim Mwingi-Yupo

Kesi upande wa mdaiwa inaanza:

Jina: Abdallah Salim

Kabila: Mndengereko

Miaka: 58

Makazi: Chamwino

Kazi: Fundi

Dini: Muislam, amethibitishwa na amesema.....

It is from that record that the respondent Halima Ismail was not given the right to be heard in respect of the matrimonial cause No. 59 of 2017 in which she was a Petitioner. It is a strange thing if the trial Magistrate proceeded with the hearing the respondent

who is the appellant in this matter without considering the fact that it was respondent who had allegations towards the appellant, thus she was duty bound to prove her case in respect of the matter. The trial court's records transpire that the Appellant was only given the chance to cross examine the appellant and his witnesses.

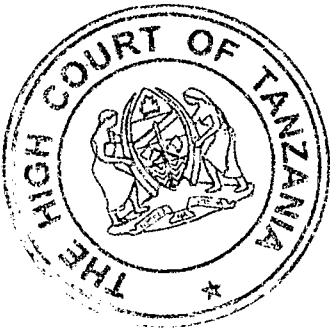
However, upon going through the Primary Court records I have noticed that the Appellant did give her testimony at the said court and the same was recorded that's why it has been summarized and considered in the Primary Court's Judgment. Even in the proceedings dated 17/10/2017 only the last part is there and the same shows that the trial Magistrate adjourned the case for the defence case to be conducted on the next session, which means that the Petitioner's case was already closed.

What I have noticed is that almost all the pages in which the Petitioner's testimony were noted down are missing in the records. The said missing seems to have happened before the case file had been typed for appeal at the District Court as the typed proceedings of the Primary Court consists the same errors.

Whether the said part of the record was were purposely removed from the records or it was just a mistake, the matter went for

appeal at the District Court but the said irregularity was not discovered.

From the foregoing findings I am of the view that, as the whole proceedings containing the Petitioner's (Respondent herein) are not available in the original case file, the whole proceedings and judgment of the trial court and that of District Court should be nullified and I so order. Consequently, I hereby order ***trial de novo*** of the matter, the same should be handled by another Magistrate of competent jurisdiction with a new set of Assessors. As the appeal involves matrimonial matter, I make no orders as to costs.




S.M. KULITA
JUDGE
31/12/2020